

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
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Counterfactual Mandate After Merits Judgment

Filed: June 29, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Mandate transmitting the affirmed partial judgment.

**Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and
Meridian Silt Holdings, LLC, Appellees.**

The judgment of this Court, entered June 8, 2026, affirmed the February 4, 2026 partial final judgment of the United States District Court for the Northern District of West Virginia on Count I. The Court exercised jurisdiction under 28 U.S.C. § 1291 after holding that the district court made a valid, supported certification under Federal Rule of Civil Procedure 54(b).

No timely petition for rehearing was filed by the June 22 deadline. Seven days have elapsed since that period expired. In accordance with Federal Rule of Appellate Procedure 41, this mandate now issues.

The district court's dismissal with prejudice of Asterglen's \$480,000 contract claim against Copper Kestrel remains in effect. Taxable costs may be processed as provided by rule and the judgment.

Certification to the District Court

The Clerk certifies the following disposition to the United States District Court for the Northern District of West Virginia: AFFIRMED. No remand of Count I is ordered, and no further merits proceeding on that dismissed claim is required.

The mandate does not adjudicate narrowed Count II against Meridian Silt. The district court retains authority over that claim, which concerns distinct alleged conduct after July 22, 2024 and excludes damages included in Count I. Copper Kestrel's amended counterclaim was dismissed with prejudice before certification and remains resolved.

The appellate judgment becomes effective in the ordinary manner upon issuance of this mandate. The district clerk shall docket the certified copy in Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED and proceed consistently with the affirmance. Any allowable bill of costs transmitted later will be handled under the applicable rules without reopening the merits.

Issued June 29, 2026 under the seal of the Court.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation